

24STCV03294 24STCV03294

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Case Number: 24STCV03294 Hearing Date: July 29, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/29/2026

CASE NUMBER: 24STCV03294

CASE NAME: KEITH FEDER, M.D., INC.

vs LOS ANGELES FIREMEN'S RELIE...

MOVING PARTY: Plaintiff Keither Feder, M.D.,
Inc.

OPPOSING PARTY: Defendant Los Angeles Firemen's
Relief Association

PROCEEDING: Motion for leave to amend

RULING SUMMARY: Plaintiff Keith Feder, M.D., Inc.'s

Motion for Leave to File Fifth Amended and Supplemental Complaint is granted. Plaintiff is ordered to file the Fifth Amended Complaint forthwith. The

Complaint is deemed served on Defendant as of July 29, 2026. The Court sets an Order to Show Cause re Responsive Pleading to Fifth Amended Complaint for _____, 2026, at 8:30AM.

Background

On

February 08, 2024, plaintiff Keith Feder, M.D., Inc. ("Plaintiff") filed a Complaint against defendant Los Angeles Firemen's Relief ("Defendant"), alleging three

causes of action for (1) Negligent Misrepresentation; (2) Promissory Estoppel, and (3) Recovery of Benefits under 29 U.S.C. § 1132 (a)(1)(B). The third cause of action is stated to be an alternative form of recovery.

Several

amended complaints have been filed. Of note, the Second Amended Complaint ("SAC") added defendant Health Comp Integrated Solutions, LLC ("Health Comp). Health Comp was named in the Third Amended Complaint ("TAC") as well, but was dismissed on without prejudice on May 29, 2025.

The

operative pleading is the Fourth Amended Complaint ("4AC") against Defendant, filed September 2, 2025, alleging three causes of action for (1) Negligent Misrepresentation; (2) Promissory Estoppel; and (3) Breach of Contract.

Plaintiff

alleges that various patients ("Patients"), represented to be insured by Defendant, were treated by Plaintiff; Plaintiff is an out-of-network provider; and Defendant has failed to pay the amounts due and owed to Plaintiff for surgical care, treatment and procedures provided to Patients. Plaintiff names two Patients by initials, JP and DW, to comply with the Health Insurance Portability and Accountability Act ("HIPAA"). While all claims stem from Defendant's failure to pay, Plaintiff sorts the claims as follows: (1) Negligent Misrepresentation and Promissory Estoppel as to patient JP only; and Breach of Contract for DW and, for JP, in the alternative.

On

October 3, 2025, Defendant filed a Motion to Strike, which was denied. On November 24, 2025, Defendant filed its Answer.

On June

16, 2026, Plaintiff filed this Motion for Leave to Filed Fifth Amended and Supplemental Complaint ("Motion for Leave to Amend"). Opposition and Reply were subsequently filed.

LEGAL

STANDARD

Trial

courts may, in furtherance of justice and on any proper terms, allow a party to

amend any pleading. (Code Civ. Proc., § 473(a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.) Trial courts may also, in their discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc. §473(a); *Branick*, *supra*, 39 Cal.4th at 242.)

Leave to

amend is generally liberally granted, provided there is no statute of limitations concern. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411.) Additionally, “judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) Trial courts may deny the plaintiff’s leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Branick*, *supra*, at 242.)

Under

California Rules of Court, Rule 3.1324, a motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Rules of Court, Rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (*Id.*, Rule 3.1324(b).)

DISCUSSION

Plaintiff

seeks to file a further amended complaint to supplement claims as to DW from 2024 to early 2025 or, in the alternative, to the extent the underpayments were adjudicated or accrued afterward, to show a continuing, systemic practice by Defendant. Plaintiff argues that granting leave promotes judicial economy as it avoids the need to file a separate action involving the identical provider,

insurer, patient, and plan provisions; and that Defendant will suffer no prejudice from an order granting leave to amend, as the trial date would not need to be moved, the legal theories are unchanged, and all evidence stems from the same nucleus of facts.

Defendant

argues that the motion fails to satisfy the requirements of Rules of Court, Rule 3.1324, because Plaintiff has failed to specify when the claims were discovered and, for those claims that occurred before the 4AC was filed, why they were not included in that pleading. Defendant further argues that Plaintiff's delay to amend demonstrates bad faith, the amendment would add discovery to an already slow-moving discovery process, and amendment is futile as Plaintiff seeks to add claims incurred during time periods in which DW was not covered by Defendant's plan.

Plaintiff

argues that Defendant's delay argument involving a prior mediation must be disregarded as assertions related to mediation are inadmissible. Plaintiff asserts that Defendant's futility argument is based on a disputed facts, which cannot be adjudicated on a motion to leave to amend. Plaintiff contends that it has satisfied Rule 3.1324 as the proposed pleading is attached to the motion as an exhibit, and the attached declaration describes the claims and damages added in paragraph 7, states in paragraph 9 when the facts were discovered, and explains in paragraph 10 why the request was not made earlier. And Plaintiff contends that Defendant has not established cognizable prejudice.

Plaintiff

has satisfied Rule 3.1324: In his declaration, Plaintiff's counsel Jonathan A. Stieglitz states: (1) "the amendment is necessary to bring the full ledger of Patient DW's ongoing claims before the Court, to avoid splitting a cause of action, and to promote judicial economy" (§ 8); and (2) "because of Plaintiff's billing lag and Defendant's adjudication process, the determinations were made and became ascertainable incrementally through 2025 and into 2026" (§ 9), and "he request could not reasonably have been made when the Fourth Amended Complaint was filed, because treatment was ongoing and the underpayments had not yet been determined or had not yet occurred (§ 10)." Plaintiff has stated when the claims were discovered and why they were not included in the 4AC.

Cassel

v. Superior Court (2011) 51 Cal.4th 113 ("Cassel") and Foxgate Homeowners' Ass'n v. Bramalea Cal., Inc. (2001) 26 Cal.4th 1 ("Foxgate"), cited by Plaintiff, hold that the statutory scheme prevents evidence of communications made during the mediation from being admitted or considered. (See Cassel, supra, 51 Cal.4th at 128; Foxgate, supra, 26 Cal.4th at 15.) The Cassel Court noted that the newer version of Evidence Code section 1119(a) was more expansive than its predecessor and "extends to oral communications made for the purpose of or pursuant to a mediation, not just to oral communications made in the course of the mediation." (Cassel, supra, 51 Cal.4th at 128.) Here, Defendant is not basing its delay argument on oral communications in the course of or for the purpose of mediation. Rather, Defendant is using the mediation as a point in time to show bad faith. Defendant's argument is unavailing for three reasons: (1) the case cited by Defendant, Miles v. City of Los Angeles (2020) 56 Cal.App.5th 728, is distinguishable, as the request for leave to amend in that case was four and a half years into the litigation and the plaintiffs moved to amend after the trial court indicated its intent to grant summary judgment, and (2) here, Plaintiff has explained that the delay in this amendment was due to its billing process.

Defendant's

argument that it would be prejudiced overlaps with its argument based on undue delay. The case Defendant cited to support its argument of prejudice arising from the additional discovery that will be necessary, P&D Consultants, Inc. v. City of Carlsbad (2010) 190 Cal.App.4th 1332, concerned discovery after a trial readiness conference where no explanation was given for the delay. (Id. at 1345.) Defendant has shown no prejudice.

On the

issue of futility, both parties cite to Foroudi v. The Aerospace Corp. (2020) 57 Cal.App.5th 992 ("Foroudi"). There, leave to amend was denied as the plaintiff could not show that he exhausted his administrative remedies as to proposed class and disparate impact claims and those claims in the second amended administrative complaint were not timely under the relation-back doctrine because they were not supported by the factual allegations in the earlier complaints. (See id. at 1001-05.) Such circumstances are not present here: the amendment is based on delayed billing.

Conclusion

Plaintiff

Keith Feder, M.D., Inc.'s Motion for Leave to File Fifth Amended and
Supplemental Complaint is granted.

Plaintiff is ordered to file the Fifth Amended Complaint forthwith. The Complaint is deemed served on Defendant
as of July 29, 2026. The Court sets an

Order to Show Cause re Responsive Pleading to Fifth Amended Complaint for
_____, 2026, at 8:30AM.

Date: 07/29/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court